

HOUSE No. 3001

The Commonwealth of Massachusetts

PRESENTED BY:

Steven George Xiarhos

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act supporting disabled first responders.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Steven George Xiarhos</i>	<i>5th Barnstable</i>	<i>1/17/2025</i>
<i>Joseph D. McKenna</i>	<i>18th Worcester</i>	<i>2/11/2025</i>
<i>Kenneth P. Sweezey</i>	<i>6th Plymouth</i>	<i>3/25/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>4/4/2025</i>

HOUSE No. 3001

By Representative Xiarhos of Barnstable, a petition (accompanied by bill, House, No. 3001) of Steven George Xiarhos and Joseph D. McKenna relative to supporting disabled first responders. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act supporting disabled first responders.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 91A of chapter 32 of the Massachusetts General Laws, as appearing
2 in the 2020 official edition, are hereby amended by adding the following new provisions:-

3 (1) Any firefighter, any call, volunteer, auxiliary, intermittent or reserve firefighter, any
4 call, volunteer, auxiliary, intermittent or reserve emergency medical services provider who is a
5 member of a police or fire department and who is not subject to chapter 152, any police officer,
6 any auxiliary, intermittent, special, part-time or reserve police officer or any municipal or public
7 emergency medical technician or licensed health care professional, or any correction officer or
8 correctional program officer who is unable to perform the essential duties of the member's job
9 by reason of accidental disability as defined by section 7 shall be subject to the provisions of
10 subsection (2).

11 (2) Notwithstanding the hours and earnings limitations of section 91A, or any other
12 general or special law to the contrary, the annual earnings of a member identified in subsection

(1) receiving benefits under this section from employment in the service of the commonwealth or a county, city, town, district or authority, including as a consultant or independent contractor or as a person whose regular duties require that their time be devoted to the service of the commonwealth, county, city, town, district or authority during regular business hours, may equal up to ½ the amount of their retirement allowance without refund penalty. Such members shall not be eligible for employment under Groups 3 and 4 of the retirement system while receiving benefits for accidental disability retirement outlined under this clause. A member who is receiving benefits under this clause may be employed by a private entity or in the private sector without refund penalty; provided, however, that their service is not devoted to the commonwealth or a county, city, town, district or authority. Nothing in this section shall prohibit a member under this clause, or such member's eligible spouse or children, from receiving additional retirement benefits not required by this clause.